

CJDA 38
JUDGMENT SHEET

**LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR
JUDICIAL DEPARTMENT**

Criminal Appeal No.313/2011
(Muhammad Yar etc. vs. The State)

Criminal Revision No.135/2011
(Manzoor Ahmad vs. Muhammad Habib etc.)

Date of hearing: 06.03.2019

Appellants: Mr. Talat Mehmood Kakezai,
Advocate alongwith appellants.

State: Malik Mudassar Ali, Deputy
Prosecutor General.

Complainant: Ch. Haq Nawaz, Advocate.

FAROOQ HAIDER, J.: Through this single judgment
Crl. Appeal No.313/2011, filed by Muhammad Yar
(since died), Muhammad Habib, Muhammad Farooq and Mst.
Naheed Akhtar (appellants) against judgment dated 22.07.2011
passed by learned Additional Sessions Judge, Chishtian
whereby **all the four appellants have been convicted and
sentenced under Section 201 PPC** to rigorous imprisonment
for seven years with fine of Rs.50,000/- each and in case of
default thereof to further undergo S.I. for six months each
whereas **Muhammad Habib and Mst. Naheed Akhtar
(appellants No.2 and 4) have also been convicted and
sentenced under Section 302 (b) PPC** to imprisonment for life
as Tazir alongwith payment of compensation of Rs.1,00,000/-
to the legal heirs of deceased Mst. Ruqiya Bibi under Section

544-A Cr.P.C. with benefit of Section 382-B Cr.P.C. and ***Crl. Revision No.135/2011*** filed by complainant Manzoor Ahmad for enhancement of sentence of Muhammad Habib and Mst. Naheed Akhtar (appellants No.2 and 4), are being decided together because both these matters have arisen out of one and same judgment.

2. Brief facts, as per written complaint (Ex.PA) submitted by Manzoor Ahmad complainant/PW-1, on the basis of which formal FIR No.95/2010 dated 01.03.2010 under Sections 302, 34 PPC at Police Station City Chishtian, District Bahawalnagar (Ex.PA/1) was registered, are that he is resident of House No.114 Street No.7, Gulshan Iqbal, Chishtian and on 05.12.2009 he got married his daughter Mst. Ruqiya Bibi with accused Muhammad Farooq, whose attitude and conduct was not good with his daughter and he used to quarrel with her daily; on 22.2.2010 he (complainant) came at the house of his son-in-law (داماد) situated at Satellite Town to see his daughter who told him that accused Farooq gave beating to her on the instigation of his sister and parents whereupon he calmed down his daughter as well as accused Farooq and returned back to his house; thereafter, on 26.2.2010, he again went to the house of his daughter at Satellite Town but she was not present there and on his query, accused Farooq told that she has gone to the house of some relative, upon which, he returned back to his house; again on 27.2.2010, he (complainant) visited the house of his daughter but she was not present there and when he inquired

from accused Muhammad Yar in this regard, he could not give any satisfactory reply whereupon he alongwith Ghulam Yasin and Saeed Alam started inquiring about his daughter from the nearby neighbourers but in vain; on 01.03.2010 he was informed by the police that a dead body is present in Civil Hospital Chishtian where he identified it as of his daughter on the basis of wearing clothes, shalwar, dupatta, teeth and foot; accused persons namely Farooq, Muhammad Yar, Naheed and Habib murdered his daughter due to household matters.

3. After conclusion of the investigation, appellants were sent to the Court for trial. They were formally charged under Sections 302, 34 PPC, to which they pleaded not guilty and claimed trial.

4. Medical evidence has been furnished by Dr. Rubina Shaheen Woman Medical Officer (PW-8), who conducted postmortem examination over the dead body of Mst. Ruqiya Bibi and found the following injuries: -

“On examination, there was swelling present on the occipital part of skull measuring 3.5 x 3.5 cm, blackish in colour. On exploration there was depressed fracture of occipital bone measuring 2.0 x 1.5 cm. Cranial cavity opened, there was liquefied blood present corresponding to the fracture in subdural space. Brain matter was also liquefied”

She has stated that above injury has been caused with blunt weapon, which is ante mortem in nature and was sufficient to cause death. The probable time between injury and death as described by her was 12 hours whereas between death and postmortem examination was more than two days but less than five days.

Prosecution produced its eight witnesses and then after tendering reports of experts closed its evidence.

Then statements of the accused were recorded under Section 342 Cr.P.C. in which they refuted the allegations levelled against them. However, they did not opt to appear as their own witness in their defence as envisaged under Section 340(2) Cr.P.C.

5. The learned trial court after conclusion of the trial has convicted and sentenced the appellants as mentioned above vide impugned judgment dated 22.07.2011.

6. Learned counsel for the appellants has submitted that impugned conviction and sentence recorded through impugned judgment are against the law and facts; that learned trial Court failed to appreciate material available on the record; that impugned judgment is result of misreading and non-reading of evidence; therefore, the same is liable to be set aside.

7. Conversely learned law officer assisted by learned counsel for the complainant has supported the impugned judgment.

8. Before proceeding further in the matter, it is pertinent to mention here that during pendency of this appeal, Muhammad Yar (appellant No.1) died, therefore, this appeal to his extent was disposed of being abated by this Court vide order dated 27.2.2013.

9. Arguments heard. Record perused.

10. It has been noticed that the complainant (PW-1) neither in his written application nor in his statement before the Court

disclosed any evidence against the appellants, however, during investigation, the Investigating Officers on 26.3.2010 recorded the statements of Akhtar Hussain (PW-3) and Mushtaq Ahmad (PW-4) who claimed themselves as eyewitnesses of catching hold arms of Mst. Ruqiya Bibi (deceased of the case) by appellant Muhammad Habib followed by Muhammad Yar and Muhammad Farooq accused persons and thereafter infliction of injury with sota at the head of Mst. Ruqiya Bibi by Naheed Akhtar appellant on 24.2.2010; both these witnesses are, however, not residents of near or around the place of occurrence rather residents of another district and at a distance of 200 kilometers from the place of occurrence, in this regard, relevant portion from the statement of PW-3 Akhtar Hussain is being reproduced below: -

“My place of residence is at a distance of about 200 K.M. from the place of occurrence”

Both the above said PWs also could not offer any plausible reason regarding their presence at the place of occurrence and even no person appeared during investigation or trial to vouchsafe/verify claim of their presence/visit at or near the place of occurrence at relevant time/day in the said vicinity; they also could not offer any plausible explanation with respect to delay in getting recorded their statements to the police; they even could not explain that if they saw the occurrence, then why they did not make any hue and cry or report the matter immediately to the police; they have even accepted in their statements before the Court that they were not knowing accused

persons and deceased and even were not having any knowledge about their names, in this regard, relevant portion of statement of PW-3 Akhtar Hussain is being reproduced below: -

“I did not know the accused party. And same way I cannot tell the names and relationships of the accused party inter-se.”

In this regard, relevant portion from the statement of PW-4 Mushtaq Ahmad is also reproduced as under: -

“Before the occurrence we did not know the complainant party or Mst. Ruqayia Bibi. Similarly, I did not know the accused party in any manner”

In this background, when the occurrence allegedly took place at night in the street where no source of light has been disclosed by the above said PWs, how they identified accused persons and deceased and how they came to know about their names is a mystery, which could not be answered by them till now; the claim of these PWs is that they saw the occurrence being committed in the street but no one of the said street has confirmed this fact; even during investigation, neither they pointed out said alleged place of occurrence to the Investigating Officer nor any site plan regarding the same was prepared, so much so, Investigating Officer admitted during his statement before the Court that he has not prepared any site plan of any such stated place of occurrence. It is important to mention here that both these witnesses i.e. **PW-3 and PW-4 categorically stated that Master Saeed is relative of the complainant party who resides in their city Jehanian and they became**

witnesses on asking of said Master Saeed, relevant portions

of statement of PW-3 is reproduced below: -

“One Master Saeed a relative of complainant party resides in Jahaniyan. We became witness on asking of said Master Saeed”

Similarly PW-4 also stated in the following manner:-

“One relative of complainant party namely Saeed residing at Jahaniyan Mandi asked us to become witness of the case”

Aforementioned scenario clearly shows that these both witnesses have not witnessed the occurrence and they have just become the witnesses on asking of one Master Saeed, who is relative of the complainant party residing in their town Jehanian Mandi. In view of this, both these witnesses are not only interested and chance witnesses but also introduced and tutored. It is trite of law that such type of chance witnesses cannot be relied upon in murder case without strong corroboration from unimpeachable, independent and strong evidence, which is lacking in the case. Guidance has been sought from the case of ***“Mst. Sughra Begum and another versus Qaiser Pervez and others”*** (2015 SCMR 1142), ***“Muhammad Ameer and another versus Riyat Khan and others”*** (2016 SCMR 1233) and ***“Arshad Khan versus The State”*** (2017 SCMR 564) and ***“Nazir Ahmad versus The State”*** (2018 SCMR 787).

Nothing has been recovered from the appellants during investigation and in this regard statement of Faqir Muhammad SI/IO (PW-7) can be referred safely, relevant portion of his statement is being reproduced as under: -

“During my investigation none of the accused confessed any guilt before me. No recovery was affected from accused during my investigation. I myself has not declared guilty to any accused in my investigation”

As far as identification of dead body of Mst. Ruqiya Bibi is concerned, the same was difficult in the peculiar facts and circumstances of the case. Furthermore on the basis of clothes etc. and other mentioned features, identification of deceased was not probable and safe because the position of dead body narrated by the lady doctor Rubina Shaheen (PW-8) in the postmortem and in her statement before the Court depicts that it was almost impossible to have its identification; for the facility of ready reference, the relevant portion from the statement of PW-8 is being reproduced below: -

“Putrefied dead body, almost animal eaten, with lower legs intact below pelvis. Body is face of mud, wearing painted chocolate coloured Qamiz, Shalwar and Woolen painted chocolate coloured Chadar. The Chadar was folded on lower extremities. A Taveez in a piece of red cloth attached with Qamiz and a hair band on hair on the posterior part of skull. Eyes sockets full of mud and putrefied. Mouth full of mud, tongue putrefied. Face and neck muscles were eaten and renaments were putrefied. Ribs sternum and all vertebrae intact but soft tissues were eaten and renaments were putrefied. Teeth were also loose. Abdomen burst, all viscera were absent and renaments were putrefied and full of mud. Pelvic organs were also animal eaten and renaments were putrefied. Blisters were present on the lower extremities as skin sling condition and nails were also lose”

Moreover, no evidence whatsoever has been brought on record with respect to dumping/burying the dead body of the deceased by the present appellants.

10. In view of what has been discussed above, prosecution has not been able to prove its case against the appellants beyond shadow of doubt.

11. Resultantly, this appeal is allowed, conviction recorded and sentence awarded to the appellants through the impugned judgment dated 22.7.2011 are set aside. Appellants are acquitted of the charge. Appellants are on bail, as during pendency of this appeal, their sentences were suspended by this Court, therefore, their sureties stand discharged from their all liabilities.

Crl. Revision No.135/2011 also stands dismissed for the above reasons.

(Farooq Haider)
Judge

Naeem

Approved for reporting.

Judge